

	agreement with the Employer to amend the Contract. If the Contractor takes any action pursuant to an End Recipient's communication without first obtaining confirmation of the communication from the Employer and/or Engineer, the Contractor shall not be entitled to additional payment, or an extension of the Time for Completion, and the Employer shall be discharged from all liability in connection with any claim in respect of the End Recipient's communication. This Particular Condition 2.6 will remain in effect throughout the life of the Contract, including after taking-over of the Works, and the possible transfer of title and ownership of the Works to the End Recipient has occurred.
Clause 3 - The Engineer	
3.1 – Engineer's Duties and Authority	
	At the end of Sub-Clause 3.1, add: The Engineer shall obtain the specific comment of the Employer in writing before taking any of the following actions specified hereafter: (a) As per Sub-Clause 20.1, agreeing or determining for any matter, which will prolong the Extension of Time for Completion and/or change the Accepted Contract Amount (b) As per Sub-Clause 4.4, approval of a subcontract for which a different subcontractor is named in the Contract (c) As per Clause 13: Instructing Variations affecting Accepted Contract Amount, Time for Completion or substantial changes to the scope of this contract. The specific comment of the Employer shall be provided within 28 days and shall not be unreasonably withheld or delayed. The specific comment of the Employer will not have any impact on the fair determination of the Engineer, or will not relieve him/her of his/her duties regarding making a fair determination.
Clause 4 - The Contractor	
4.2 Performance Security	
	Delete the first sentence of the second paragraph of Sub-Clause and substitute: The Contractor shall, together with the return of the countersigned Contract, furnish the Contracting Authority with a Performance Security for the full and proper performance of the contract. Delete the last paragraph of Sub-Clause and substitute: The Performance Security shall be released within 60 days after completion of the following events whichever occurs last: a) the issuance of Performance Certificate under Sub-Clause 11.9 [<i>Performance Certificate</i>], b) the receipt from the Contractor of a written discharge together with a letter of release issued by Ministry of Labour and Social Security confirming the Contractor has fulfilled all his statutory Social Security obligations arising out of or in connection with the performance of the Contract to the Employer provided that the laws and regulations require so. Add at the end of the Sub-Clause: Whenever the Engineer determines an addition or a reduction to the Contract Price